

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.

LINVAL GRANT,

Plaintiff,

SUMMONS

BRONX County
is designated by
Plaintiff as the
place of trial

-- against --

Venue is based on
Plaintiff's
residence

THE CITY OF NEW YORK, POLICE DEPARTMENT
OF THE CITY OF NEW YORK and DETECTIVE
EDDY SORIANO, (SHIELD#6981)

Defendants,

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the complaint.

Dated: Westchester, New York

December 5, 2024

Yours, etc.,


PERCIVAL A. CLARKE, ESQ.,
Attorney for Plaintiff
10 Fiske Place, Suite 402
Mount Vernon New York 10550
Tel. No. [914] 310-2324

-1-

Index Number assigned:

Date of filing with Clerk of Court:

Plaintiff's Address:

LINVAL GRANT

3442 Corsa Avenue, Apt. 2C

Bronx, New York 10469

Defendants' Addresses:

THE CITY OF NEW YORK

CORPORATION COUNSEL

100 Church Street, 5th. Floor

New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

C/O Comptroller of the City of New York

One Centre Street

New York, New York 10007

DETECTIVE EDDY SORIANO

NYPD-SPECIAL VICTIM DIVISION

1086 Simpson Street

Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X
LINVAL GRANT,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE DEPARTMENT
OF THE CITY OF NEW YORK and NYPD
DETECTIVE EDDY SORIANO (SHIELD #6981)

Defendant,

X

Plaintiff, LINVAL GRANT, by and through his
attorney, PERCIVAL A. CLARKE, ESQ., complaining of the
defendants, alleges as follows:

1. Plaintiff, LINVAL GRANT, is, and at all times
hereinafter mentioned, was a resident of the County of Bronx
and State of New York, residing at 3442 Corsa Avenue, Apt. 2C,
Bronx, New York 10469.

2. Upon information and belief, defendant, THE
CITY OF NEW YORK, hereinafter referred to as "NYC", is a
municipal corporation created and authorized under the laws
of the State of New York and is duly authorized to maintain
a police department which acts as its agent in the area of

law enforcement and for which it is ultimately available.

3. Upon information and belief, Defendant, POLICE DEPARTMENT OF THE CITY OF NEW YORK, hereinafter referred to as "NYPD", at all times hereinafter mentioned was and still is a Department of the Defendant NYC.

4. Upon information and belief, at all time hereinafter mentioned, Defendant NYC, its servants, agents and/or employees operated, maintained, managed and/or controlled the Defendant NYPD.

5. Upon information and belief, defendant EDDY SORIANO, Shield Number 6981, is a Detective employed by the defendants, NYC and NYPD and was assigned to the Special Victims Division located at 1086 Simpson Street, Bronx, New York 10459.

6. That within ninety (90) days of the date of the incident complained of herein, a Notice of Claim, in writing, was served on behalf of the plaintiff. LINVAL GRANT, upon defendants THE CITY OF NEW YORK and the CITY OF NEW YORK POLICE DEPARTMENT, in compliance with Section 50-e of the General Municipal Law of the State of New York.

7. That a hearing, pursuant to General Municipal Law Section 50-h, was held on April 19, 2024.

8. That despite the expiration of thirty (30) days since the conclusion of the Municipal Law Section 50-h hearing, Defendants have neglected and/or refused to pay or adjust said claim.

9. That on or about April 9, 2023, without any proper of further investigation, or as a result of an improper investigation relating to an allegation of sexual conduct against a child, Defendant Detective Eddy Soriano, issued an I-Card Warrant for the detainment and/or arrest of the plaintiff.

10. That on April 24, 2023, the plaintiff was arrested by Detective Eddy Soriano as a result of the aforementioned unlawful I-Card Warrant.

11. That on April 24, 2023, plaintiff Linval Grant, without ant further investigation, was transported to the Special Victim Division in the County of Bronx, by Detective Eddy Soriano where he was detained and handcuffed the defendants without legal justification or probable cause.

12. That on April 24, 2023, Detective Eddy Soriano, without any further investigation and/or as a result of an improper investigation, subjected the plaintiff to an improper and false arrest after which the plaintiff was fingerprinted, searched and placed in a holding cell.

13. That on April 24, 2023, Detective Eddy Soriano provided false and misleading information to the Bronx County District Attorney's Office and executed a Criminal Court Complaint against the plaintiff.

14 That on April 24, 2023 Detective Eddy Soriano falsely stated, to the Bronx District Attorney's Office, that the plaintiff had committed the crimes of Course of Sexual Conduct Against a Child in the First Degree, Course of Sexual Conduct Against a Child in the Second Degree and Endangering the Welfare of a Child.

15. That on April 25, 2023, the plaintiff was arraigned before the Criminal Court of the City of New York, County of Bronx and bail was set in the amount of \$50,000.00.

16. That following the plaintiff's arraignment, he was transported to the Rikers Island Correctional Facility where he was placed in protective custody until his release after posting bond.

17. That thereafter, the plaintiff was forced to retained counsel for legal representation, on the criminal case, and incurred legal fees.

18. That on October 20, 2023, after making several in-person court appearances, the case was dismissed on the application of the Bronx District Attorney's Office.

19. The unlawful detention and arrest, filing and providing false information, by Detective Eddy Soriano to the Bronx County District Attorney's Office, caused plaintiff physical, psychological and emotional trauma.

AS AND FOR A FIRST CAUSE OF action (Malicious Prosecution)

20. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs 1 through 19 heretofore made herein with the same force and effect as though fully set forth herein.

21. The defendants instituted criminal process against the plaintiff with malice and without legal basis.

22. The defendants recklessly made categorical statements to the police accusing the defendant of committing the crimes of aforementioned which resulted in the plaintiff's arrest.

23. The defendants instigated and participated in the prosecution of the plaintiff by having him arrested, filing false statements and Supporting Deposition and by giving false testimony all for an improper purpose.

24. The defendants commenced and continues criminal proceedings against the plaintiff and for each of the charge for which he was prosecuted.

25. There was actual malice and an absence of probable cause for the criminal proceedings against the plaintiff and for each of the charge for which he was prosecuted.

26. The criminal proceeding terminated in favor of the plaintiff when the Court dismissed the criminal charges on the application of the Bronx County District Attorney's office.

27. The defendants, City of New York and New York City Police Department, as employers of the defendant, Detective Eddy Soriano, are responsible for the wrongdoing under the doctrine of *respondeat superior*.

AS AND FOR A SECOND CAUSE OF ACTION: (Abuse of Process):

28. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs 1 through 27 heretofore made herein with the same force and effect as though fully set forth herein.

29. The defendants maliciously used "legal process", provided by the Penal Laws of the State of New York, to accomplish some ulterior purpose for which they were not designed or intended, or which was not the legitimate purpose of the particular process employed.

30. The defendants used legal process, the Temporary Order of Protection, to deny plaintiff access to the marital residence and to gain an advantage in the divorce proceeding.

31. The defendants knew, or should have known, that the criminal complaint initiated in the Criminal Court of the City of New York, County of Bronx, was groundless and made misrepresentations to the Court and the Office of the Bronx County District Attorney.

32. The defendants knew, or should have known, that the Criminal Court Complaint, filed with the Criminal Court of the City of New York, was groundless and made misrepresentations therein to gain an advantage in the proceeding.

AS AND FOR A THIRD CAUSE OF ACTION: (Intentional Infliction of Emotional Distress):

33. The plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs 1 through 32 heretofore made herein with the same force and effect as though fully set forth herein.

34. The defendants, intentionally and deliberately inflicted emotional distress on the plaintiff by maliciously prosecuting the plaintiff or by abusing the lawful processes for an unlawful purpose and by having him arrested without probable cause.

35. The defendants' conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized society.

36. The actions of the defendants were the cause of the plaintiff's distress.

37. The emotional distress sustained by the plaintiff was, and still is, severe and of a nature that no reasonable person could be expected to endure.

38. As a direct result of the defendants' extreme and outrageous conduct, the plaintiff has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment and humiliation.

AS AND FOR A FOURTH CAUSE OF ACTION: (False Imprisonment and False Arrest)

39. Plaintiff repeats, reiterates and re-alleges each and every allegations set forth in Paragraphs 1 through 38 as though fully set forth herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine plaintiff and, in fact, confined plaintiff and plaintiff was conscious of the confinement.

in addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. As a result of the aforementioned conduct of the defendants, plaintiff sustained injuries including, but not limited to loss of liberty, emotional and psychological injuries.

AS AND FOR A FIFTH CAUSE OF ACTION (Negligent Hiring, Training and Retention)

42. Plaintiff repeats, reiterates and re-alleges each of every allegations set forth in Paragraphs 1 through 41 as though set forth herein.

43. The defendants, City of New York and New York City Police Department, and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendant, Detective Eddy Soriano, and other officers, who were unfit for the performance of police duties on the aforementioned dates and locations.

44. As a result of the aforementioned conduct, plaintiff sustained injuries, including, but not limited to emotional and psychological injuries.

PRAYER FOR RELIEF

WHEREFORE, the plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fee, costs, expenses and interest and any other relief as to the Court deems just and proper.

Dated: Westchester, New York
JULY 9, 2024

Yours, etc.,



PERCIVAL A. CLARKE, ESQ.,
Attorney for Plaintiff
10 Fiske Place, Suite 402
Mount Vernon, New York 10550
Tel. No. 914-310-2324

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
LINVAL GRANT,

VERIFICATION

Plaintiff,

-- against --

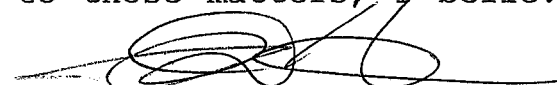
THE CITY OF NEW YORK, THE CITY OF NEW
YORK POLICE DEPARTMENT and DETECTIVE
EDDY SORIANO (SHIELD#1981)

Defendant,

-----X
STATE OF NEW YORK)

COUNTY OF WESTCHESTER) SS.:

I, LINVAL GRANT, being duly sworn, depose and say that: I am the Plaintiff in the within action; I have read the foregoing Complaint and know the contents thereof; the contents of the Complaint are true to my knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.


Linval Grant

Subscribed and sworn
to before me on the
16th day of July 2024



Notary Public
My commission expires on: 6/20/2026

PERCIVAL A. CLARKE
Notary Public, State of New York
No. 4837734
Qualified in Westchester County
Commission Expires June 20, 2026

PERCIVAL A. CLARKE
Notary Public, State of New York
No. 4837734
Qualified in Westchester County
Commission Expires June 20, 2026

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X
LINVAL GRANT,

Index No.

Plaintiff,

-against-

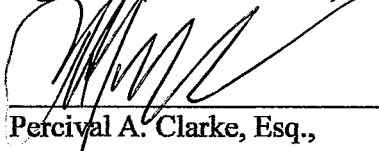
THE CITY OF NEW YORK, POLICE DEPARTMENT
OF THE CITY OF NEW YORK and DETECTIVE
EDDY SORIANO (SHIELD #6981)

Defendants,

X

SUMMONS AND VERIFIED COMPLAINT

Signature (Rule 130.1.1-a)



Percival A. Clarke, Esq.,

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Mount Vernon, New York 10550
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Email: percivalclarke@hotmail.com